# USAID BEST PRACTICES FOR COMPLYING WITH CHILD SAFEGUARDING REQUIREMENTS

Children living in countries where USAID provides development and humanitarian assistance face a range of challenges, including extreme poverty, conflict, natural disasters, and disease. These challenges increase the risk of child abuse, exploitation, and neglect.[1],[2]

USAID's Automated Directives System (ADS) and AIDAR contains **specific requirements** for implementing partners to adopt, prevent, and address incidents of child abuse, exploitation, or neglect in USAID-funded programs. For assistance awards, the child safeguarding provisions can be found in **ADS 303maa M.27 for US NGOs, ADS 303mab M.25** for non-US NGOs, and **ADS 303mat M.13** for fixed-amount awards. **AIDAR 752.7037** contains the child safeguarding contract clause for all contracts other than those for commercial items. These specific requirements are listed in **boldface verbatim below** as they appear in the mandatory grants provisions and contract clauses.[3]

Below are helpful guidance examples—most from our partners and other donors—about how to protect children in our programs. The required core principles in USAID awards are listed first in **boldface** then followed by examples of ways that implementing partners are implementing the requirements. As a reminder, each of these core principles must be included in an organization's code of conduct for all personnel implementing USAID-funded activities, and this requirement must be included in all subawards and subcontracts. USAID is not endorsing any specific organization, model, or example, but rather is summarizing available information for the convenience of our implementing partners. This information is not exhaustive. Any decisions on cost allowability, allocability and reasonableness relating to these best practices will rest with the cognizant Agreement Officer/Contracting Officer.

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## *Required Core Principles in USAID Award and Sample Partner Practices*

### (1) Ensure compliance with host country and local child welfare and protection legislation or international standards, whichever gives greater protection, and with U.S. law where applicable.

Examples include:

- Create human resources (HR) materials that include an organizational and individual commitment to ensure compliance with U.S. laws and applicable host country and international standards, including but not limited to, codes of conduct signed by each employee; training materials; HR policies and handbooks; contracts or grants with consultants, and other relevant materials.
- Develop the capacity to locate, review, and track applicable U.S. Federal and State laws and host country child protection laws and standards.[4]
- Develop resources and training programs to assist staff in understanding and staying current with applicable child safeguarding requirements in host countries.
- Retain local counsel, as for employment matters in a particular country, to research and provide advice and counsel on applicable legal requirements on child safeguarding.

Implementing partners, especially those who work in the child protection sector, are also responsible for understanding international standards that apply to their programs.[5]

### (2) Prohibit all personnel from engaging in child abuse, exploitation, or neglect.

Examples include:

- Include in materials a notification that provides: "Any individual under the age of 18" is a child and is "underage," *regardless of the legal age of consent of the country in which the child lives and/or in which the offense occurs."* Or, state explicitly that an underage child cannot legally give informed consent to any sexual activity, and that any sexual activity with a child will be treated as a serious infraction and result in disciplinary action, including termination and the pursuit of any other available legal remedy.
- Provide a detailed list of what is prohibited, stating, for example, that employees, or any individuals who may be working for or acting on behalf of the humanitarian and development organizations, whether on a voluntary or paid basis, should not:
- Have a child/children with whom the employee is in contact in a work-related context (for example, program beneficiaries or participants) stay overnight at their home or any other personal residential location or accommodation.
- Use physical punishment, discipline, or physical force of any kind towards children, including the withholding of essential items.
- Use language with or behave towards a child in a way that is inappropriate, offensive, abusive, sexually provocative, demeaning or culturally inappropriate.
- Fondle, hold, kiss, hug, or touch children in an inappropriate or culturally insensitive way.
- Sleep in the same room or bed as a child with whom they are in contact in a work-related context.
- Do things of a personal nature for children, with whom they are in contact in a work-related context (e.g., taking a child/young person to the toilet/bathroom; helping them get un/dressed).
- Act in ways that shame, humiliate, belittle, or degrade children, or otherwise perpetrate any form of emotional abuse.
- Discriminate against, show differential or preferential to, or favor particular children.
- Use computers, mobile phones, video and digital cameras, or other electronic devices or mediums to exploit, harass, or bully children.
- Use computers, mobile phones, or video/digital cameras or other electronic devices, to access, view, create, download, or distribute child pornography (the preferred term to replace the term 'child pornography' is Child Sex Abuse Material (CSAM)), including abusive images of children or young people.
- Post a general statement that prohibits all personnel from engaging in child abuse, exploitation, or neglect in their applicable HR announcements and other employee materials, so that personnel are aware and notified about the blanket prohibition

against such conduct; and add that such conduct is grounds for disciplinary action, up to and including termination and referral for law enforcement action.

### (3) Consider child safeguarding in project planning and implementation to determine potential risks to children that are associated with project activities and operations.

Examples include:

*Project design*

- Conduct a child safeguarding risk assessment that reveals the ways in which employees and partners come into direct or indirect contact with children for a specific program, project, or activity, and identify risk mitigation measures that will protect children in advance from child abuse, exploitation, and neglect.
- Establish a presumption that incorporates reasonable risk mitigation measures into the design and operation of programs where the activity will present a high-risk of harm to children and young people.
- Designate Child Safeguarding Officers (CSOs) as the first point of contact for reporting and referring concerns about child abuse, exploitation, and neglect. CSOs may also be a resource for individuals to share concerns and discuss appropriate actions.
- Work directly with children in programming and actively, meaningfully, and ethically involve them in the development of safeguarding measures in accordance with their evolving capacities.
- Consider the impact on children of any planned research activities in project design planning.
- Adapt child safeguarding programs and policies to be responsive to a child's age, life stage and gender, with attention to disabilities. For example:
- Where partner-sponsored maternal and child health programs include physical exams of children to ascertain if development milestones are being reached, case-assessment questions may also be included to address possible domestic abuse or violence in the home when a child shows signs of stunting or other developmental delays (Appropriate referral and supportive services information must be available if children disclose that they are being abused).
- Other examples include: (1) ensuring that the reporting mechanisms by which children can report abuse are age appropriate; (2) ensuring all child participants in a program are made aware of their rights and how to keep safe from abuse, exploitation, or neglect; (3) reporting processes take into account the age, gender, disabilities, and capacities of children; (4) encouraging children (who are of appropriate age and maturity level) to act as peer ambassadors and to speak up when they encounter a situation of abuse; and (5) when conducting risk assessments, ensure there is representation from all populations of children impacted by the program.
- Working with children with disabilities presents specific challenges that should be addressed in program/project design. Children with disabilities may be more vulnerable to abuse, exploitation, or neglect, and also have less access to, or capacity to communicate with, others who can help. Children with disabilities are also significantly more likely to experience sexual violence than non-disabled children. Thus, alternative prevention, reporting, and tracking options must be built into the design and implementation of the program. Implementing partners must comply with USAID's disability policies by promoting the participation of, and equalization of opportunities for, individuals with disabilities in country and sector strategies, activity designs and implementation (see e.g. 48 CFR Section 752.222-70 which contains USAID's disability policy).

### (4) Apply measures to reduce the risk of child abuse, exploitation, or neglect, including, but not limited to, limiting unsupervised interactions with children; prohibiting exposure to pornography [Child Sex Abuse (CSAM) material]; and comply with applicable laws, regulations, or customs regarding the photographing, filming, or other image-generating activities of children.

Examples include:

- Prepare codes of conduct that include all USAID child safeguarding core principles in the applicable standard award requirement in ADS 303/AIDAR clause 752.7037 that require each subawardee or subcontractor to ensure its personnel adhere to the child safeguarding core principles.
- Develop guidance on expected and acceptable behavior for children and adolescents (who are beneficiaries within the program) towards each other, especially in activities, involving direct contact among children.
- Establish clear guidance that prohibits creation, viewing, and any possession of CSAM at work or otherwise and that delineates the disciplinary consequences for prohibited CSAM conduct.
- Have personnel and processes in place to audit and spot check IT systems for CSAM.
- Require all personnel to make certain that a child is not alone with one adult in any setting, and require that another adult be with the employee and child and that the child is in an open public place, where others are around and in plain view of others.
- Restrict personnel from providing transportation (car rides) to individual children for any reason.

*Media Best Practices*

- Ensure images, interviews and videos of children are only taken after understanding their potential impact on their safety, dignity, and well-being, in a manner that ensures respect for children's privacy, and in compliance with applicable laws.
- Before obtaining and using identifiable images and stories of children, get informed consent from their parents/guardians in writing, and inform the family of how such images or the story will be used.
- Obscure the visual identity of any child if dissemination of the image could make the child vulnerable to stigma, discrimination, abuse, violence, or exploitation.
- Store all content and data (names, photos, case studies) securely, and restrict access to those with a need to know.
- Consider how stories and images can convey dignity and respect before sharing them and avoid sensationalism and stereotypes. Consider how the entity's words and images reflect upon the children, families, and communities.
- Prohibit the exchange of contact information directly with children. Primary caregivers should mediate all contact.
- Limit sharing of information on social media or otherwise that could expose or endanger children and families. De-identify all stories and images, removing geotagging, distinguishable landmarks, and names, and changing any personal details where necessary.

### (5) Promote child-safe screening procedures for personnel, particularly personnel whose work brings them in direct contact with children.

Examples include:

- Use child-safe policies or statements of commitment to child safety as a communication tool to let job applicants know that the organization takes child safety seriously.
- Talk about child safeguarding regularly at training and post visible messages around the organization to remind staff and visitors of the commitment to child safety.
- Ensure that job advertisements detail mandatory background and screening procedures and reference the organization's child safeguarding policies.
- Reference child safeguarding in job position descriptions.
- Provide formal and informal child safeguarding supervision, mentoring, and training opportunities for all personnel.
- Where consistent with applicable law, conduct criminal background checks and child abuse or sexual offender registry checks where available to screen candidates.
- Include an interview question specifically relating to child safeguarding issues, and where relevant, inquire about the candidate's previous history and suitability for working directly with children.

*Additional partner practices related to visitors, representatives, and volunteers:*

- Ensure that all representatives (e.g., site visitors, donors, invited guests, volunteers) are notified of and agree to abide by USAID's child safeguarding policy prior to visiting the program, especially if representatives will come into contact with children. As circumstances warrant, consider the possibility of requiring or conducting background checks of such individuals.
- Provide all site and program visitors in advance of a site visit with a copy and review of the child safeguarding policy.
- Provide each visitor a verbal briefing on child safeguarding at the site.
- Identify a visit lead who is responsible for ensuring that all visitors are appropriately supervised if contact with children is necessary for the child and that visitor behavior complies with applicable child safeguarding policies.
- Train all staff on how to safely and appropriately intervene if a child is believed to be at risk or harmed by a visitor, and where to report abuse.
- For on-site journalists, visiting celebrities or high-level visitors for whom a background check may not be possible, conduct a child safeguarding phone briefing and ensure active supervision of such visitors.
- Avoid situations that might objectify or stigmatize children, such as asking them to perform or to discuss traumatic events.
- Especially in residential settings, caution against allowing exclusive relationships to develop between visitors and children.

### (6) Have a procedure for ensuring that personnel and others recognize child abuse, exploitation, or neglect; mandating that personnel and others report allegations; investigating and managing allegations; and taking appropriate action in response to such allegations, including, but not limited to, dismissal of personnel.

Examples include:

- Consistent with the child safeguarding core principles, establish a mandatory internal reporting structure for actual and potential cases of abuse to be received and processed.
- Design reporting mechanisms for implementing partner staff as well as beneficiaries to ensure appropriate referral of concerns within the organization, as well as to the appropriate authorities, while maintaining appropriate confidentiality. In addition, design child and youth reporting mechanisms to be accessible, friendly, and sensitive to children themselves. For example, implementing partners with education programs may embed simple contact information in their education materials, such as comic books or posters at children's eye level/s in classrooms, stating how to report abusive behavior. Implementing partners with public health programs can train community health workers, at clinics where children are examined and treated, to provide patients with information on how to report abusive behavior and be prepared to respond and quickly refer children who disclose abuse—and without risking identification of the child to those who might retaliate.
- Prohibit retaliation against those who make good faith reports of suspected abuse, even if the allegations prove unfounded.
- Keep all information in relation to child safeguarding concerns confidential. Any information shared should be on a 'need to know' basis and with the knowledge and consent of those concerned where appropriate.
- Consistent with the child safeguarding core principles, establish a mandatory procedure for ensuring that personnel and others recognize child abuse, exploitation, and neglect, and for dividing roles and responsibilities between prevention, investigation, and taking appropriate action through specific written policies that outline how staff are made aware of their responsibilities and how to identify and report issues.
- For disclosures directly from children, it is important to listen to the information being shared but not press for further information; ask open questions, and only enough questions to obtain information to refer the matter to qualified, child safeguarding professionals.
- If at all possible, assess whether there is an immediate risk to the child or young person within 48 hours, and take quick steps to mitigate these risks.

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[1] Research and anecdotal evidence indicate that persons with a history and proclivity to abusing children will often seek positions of power and authority to gain access to vulnerable children. Perpetrators may particularly seek employment within countries, like many of those served by USAID programs, with weak social welfare, protection, and judicial systems. See: Ligiero, D., Hart, C., Fulu, E., Thomas, A. & Radford, L. (2019). **What works to prevent sexual violence against children-evidence review**. Together for Girls.

[2] Essential data on perpetrators and all types of violence against children and prevalence rates are also available online at Together For Girls, which provides the survey data and reports from the Violence Against Children (VAC) household surveys by country. Both USAID and the Centers for Disease Control (CDC) have funded the globally recognized, flagship VAC survey in over 20 countries.

[3] USAID's strategic vision for supporting children in adversity is articulated in *USG's Strategy For Advancing Protection and Care for Children in Adversity*. This strategy encourages partners to adapt best practices for implementing child safeguarding award provisions applicable to USAID programs. *See*: **https://www.childreninadversity.gov/strategy**.

[4] *See e.g.,* Law Library of Congress, Child Protection Law and Policy Report. LL File No.2019-017406. May 2020 (analyzing child abuse laws of U.S. and some foreign jurisdictions).

[5] *See e.g.,* **Optional Protocol to the United Nations Convention on the Rights of the Child on the sale of children, child prostitution, and child pornography**, **Optional Protocol to the United Nations Convention on the Rights of the Child on the involvement of children in armed conflict**, International Labour Organization **Convention 182 Concerning the Prohibition and Immediate Action for the Elimination of the Worst Forms of Child Labour**.

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